No. [redacted]

IN THE SUPREME COURT
OF THE UNITED STATES OF AMERICA

OCTOBER TERM, 1995

STEINEY J. RICHARDS, PETITIONER

96-5955

VS.

THE STATE OF WISCONSIN, RESPONDENT.

MOTION FOR LEAVE TO PROCEED IN FORMA PAUPERIS

The petitioner asks leave to file the attached petition for a writ of certiorari without prepayment of costs and to proceed in forma pauperis.

The Wisconsin State Public Defender appointed the undersigned to represent petitioner in the United States Supreme Court because petitioner is indigent. The Wisconsin State Public Defender also appointed the undersigned to represent the petitioner on direct appeal in the Wisconsin appellate system. The Wisconsin Supreme Court and Wisconsin Court of Appeals did not require the petitioner to pay filing fees related to the appeal because petitioner had appointed counsel.

The petitioner is a prisoner at Kettle Moraine

Supreme Court, U.S.
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SUPREME COURT, U.S.

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Correctional Institution, Plymouth, Wisconsin, and cannot afford the filing fee for this petition.

Respectfully submitted,



David R. Karpe

COUNSEL OF RECORD

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QUESTIONS PRESENTED

I. Does the Fourth Amendment, as interpreted by Wilson v. Arkansas, 514 U.S. ____, 115 S. Ct. 1914, 131 L.Ed.2d 976 (1995), permit a court to uphold police noncompliance with the rule of announcement without looking to the particular circumstances of the entry if the police have a warrant to search for drugs?

II. Does the Fourth Amendment, as interpreted by Wilson v. Arkansas, 514 U.S. ____, 115 S. Ct. 1914, 131 L.Ed.2d 976 (1995), permit a blanket exception that says police never need to "knock and announce" if drugs are the object of a search warrant?

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All parties appear in the caption of the case on the cover page.

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IN THE SUPREME COURT
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OCTOBER TERM, 1995

STEINEY J. RICHARDS, PETITIONER

VS.

THE STATE OF WISCONSIN, RESPONDENT.

ON PETITION FOR WRIT OF CERTIORARI TO THE
SUPREME COURT OF THE STATE OF WISCONSIN

PETITION FOR A WRIT OF CERTIORARI

OPINIONS BELOW

The Wisconsin supreme court, the highest state court, reviewed the merits of this case, and its opinion appears at Appendix A to the petition and is reported at 201 Wis. 2d 839 and 549 N.W.2d 218.

The opinion of the court of appeals, an intermediate reviewing court, appears at Appendix B to the petition and was unreported. The table found at 183 Wis. 2d 429 and 516 N.W.2d 19 refers to this unpublished decision.

JURISDICTION

The date on which the highest state court decided this case was June 12, 1996. A copy of that decision appears at Appendix A. The jurisdiction of this Court is invoked under 28 U.S.C. §1257(a).

CONSTITUTIONAL PROVISIONS INVOLVED

The Fourth Amendment reads:

> The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

The Fourteenth Amendment reads, in relevant portion,

> ...nor shall any State deprive any person of life, liberty, or property, without due process of law...

STATEMENT OF THE CASE

This case revolves around police entry into the petitioner's hotel room in Madison, Wisconsin, at 3:40 a.m. on December 31, 1991.

The police did not comply with the announcement rule in effecting the entry. The magistrate who issued the warrant specifically determined that the particular circumstances did not justify a "no-knock" warrant, and he struck those portions of the warrant that would have authorized such execution.

The Wisconsin supreme court opinion relates,

> The dispositive facts for purposes of this appeal can be stated succinctly: on December 31, 1991, police executed a search warrant for the motel room of the defendant seeking evidence of the felonious crime of Possession with Intent to Deliver a Controlled Substance in violation of Wis. Stat. § 161.41 (1m)(1991-92). They did not knock and announce prior to their entry. Drugs were seized.
>
> The circuit court denied Richards'[s] motion to suppress. Richards subsequently entered pleas of no contest to the felony of possession of cocaine base with the intent to deliver, Wis. Stat. §161.41(1m), and a tax stamp violation, Wis. Stat. §139.95(2). The court found him guilty and sentenced him to 13 years imprisonment on the possession with intent count and three years concurrent imprisonment on the tax stamp count. Richards appealed. The court of appeals upheld the circuit court's ruling, relying on [State v.] Stevens[, 181 Wis. 2d 410, 511 N.W.2d 591 (1994)]. Richards filed a petition for review which we granted.

201 Wis. 2d at 843.

For the purposes of this petition, Richards does not contest this recitation of facts. The Wisconsin Supreme Court held that the particular circumstances of this case did not matter in light of the blanket exception to the announcement rule. If the United States Supreme Court finds the Wisconsin blanket rule repugnant to the Fourth Amendment, then and only then will further factual analysis be required on remand to determine whether specific exigent circumstances were present.

REASONS FOR GRANTING THE PETITION

THE SUPREME COURT SHOULD GRANT CERTIORARI TO DETERMINE WHETHER THE FOURTH AMENDMENT PERMITS BLANKET EXCEPTIONS TO THE RULE OF ANNOUNCEMENT.

Review is requested under Supreme Court Rule 10(c) in that the Wisconsin supreme court has decided an important question of federal law that has not been, but should be, settled by this Court, and the Wisconsin court has also decided an important federal question in a way that conflicts with Wilson v. Arkansas, 514 U.S. ___, 115 S.Ct. 1914, 1919, 131 L.Ed.2d 976 (1995).

In sum, the Wisconsin supreme court has ruled in the case at bar that in drug cases, police need never comply with "knock and announce" despite the holding of Wilson that compliance with announcement forms a part of the reasonableness analysis courts must conduct under the Fourth Amendment. The importance of this federal question is beyond dispute. It affects every execution of a search warrant in the United States involving allegations of drug-dealing. This Court should subject the Wisconsin opinion to testing because to fail to review this decision invites other courts to join the Wisconsin court in refusing to balance the interests of states against neutral objective criteria in "knock and announce" cases. When probable cause exists, it is usually not necessary to perform a balancing test, but in

the case of unannounced entry into a home, due to the unusual harmfulness to an individual's privacy and physical interests, such a balancing must take place. See United States v. Whren, 116 S.Ct. 1769, 1776 (1996).

Nowhere is the protective force of the Fourth Amendment more powerful than when the sanctity of the home is involved, and the rule of announcement protects people in their homes. In Miller v. United States, 357 U.S. 301, 313 (1958), this Court stated,

> [T]he requirement of prior notice of authorization and purpose before forcing entry into a home is deeply rooted in our heritage and should not be given a grudging application.

Despite such a long-standing doctrine of recognition of the importance of the announcement rule in Anglo-American law, the opinion below mocks this statement and encourages other state courts to bandy with the rule.

The broad precedential effect of the instant case is demonstrated by events in the Sixth Circuit Court of Appeals following the issuance of the decision. In a letter to counsel for the defendant in United States v. Bates, 84 F.3d 790 (6th Cir. 1996), dated July 17, 1996, Clerk Leonard Green of the Sixth Circuit advised that the court would

> appreciate your filing a response to the government's petition for rehearing...In connection with your response to the first section of the government's argument, the court will find particularly helpful your comment on the recent

decision of the Supreme Court of Wisconsin in State v. Richards, 549 N.W.2d 218 (1996).

(See letter in Appendix C).

The Sixth Circuit had earlier rejected a blanket rule in Bates. In fact, the court found after examining the specific circumstances of the case that an informant's report of the presence of a handgun, the fear that cocaine would be destroyed, and the barricading of the apartment door all together did not constitute exigent circumstances. No decision has yet issued on the government's petition for rehearing.

The Bates situation is simply a foretelling example of the floodgates of non-balancing that could open up if this Court remains silent about Richards. Courts in Wisconsin are already not engaging in case-by-case analysis of home entries in drug cases as a result of the lower court ruling. For example, in State of Wisconsin v. Kenneth L. Larson, (Wis. App., June 27, 1996, (95-1940-CR) (Appendix D), the Wisconsin court of appeals denied relief based on the instant case.

The issue to be resolved is not whether the state court can form an exception to the rule; it is whether such exception can be blanket in nature. Wilson v. Arkansas, 514 U.S. ___, 115 S.Ct. 1914, 1919, 131 L.Ed.2d 976 (1995), stated that

> For now, we leave to the lower courts the task of determining the circumstances under which an unannounced entry is reasonable under the Fourth Amendment.

According to the Wisconsin supreme court, this gives license to the lower courts to establish a blanket rule in drug cases. See State v. Richards, 201 Wis. 2d 839, 849, 549 N.W.2d 218 (1996):

> Wilson does not forbid blanket rules; rather, it requires such rules to be supported by the standard of "reasonableness." The Court left it to the lower courts to determine "the circumstances under which an unannounced entry is reasonable under the Fourth Amendment." Wilson, 115 S. Ct. at 1919.

Thus, the Supreme Court should grant certiorari to determine whether the Wisconsin court properly interpreted, applied or extended Wilson. See Oregon v. Mathiason, 429 U.S. 492, 493 (1977).

According to the reply brief which the accused filed in Wilson v. Arkansas, the state and all the amici curiae supporting Arkansas's position sought a blanket rule exempting drug searches from the announcement rule. Reply Brief for Petitioner, Wilson v. Arkansas, No. 94-5707, 1995 WL 120155, at *11 (U.S. Mar. 17, 1995).

Further, it would appear from statements made and questions posed at oral argument in Wilson that at least one member of the court had a concern with not making a blanket rule in the Wilson case: *28-*31. *40-*42 WL

QUESTION: Well, I mean, you're asking us--I don't find--you have some good arguments, but I don't think that's one of them, that we should exercise the judgment of whether it's a wise thing for the policeman to go crashing in or not, from his standpoint.
MR. HALL: Well, but he could make that determination based on what he knows at the scene, starting from the principle that we have an announcement requirement, but can it be dispensed with in this case for whatever reason, and if it can be dispensed with, I'm sure they'll be able to justify it. The exceptions, we agree, the three exceptions have been around for 150 years as well. There are common law cases recognizing these exceptions, and we don't dispute that they would apply now, and when they get there, if they have a reasonable basis for believing, by--and I would agree, even if you get to that point, that reasonable suspicion has to be the standard under [Maryland v.]Buie[, 494 U.S. 325 (1990)]. If they have reasonable suspicion to believe that some violence might occur, they can come in.
QUESTION: How about reasonable suspicion that evidence will be destroyed?
MR. HALL: Possibly the same as well.
QUESTION: Isn't that--
MR. HALL: But Buie--
QUESTION: Wouldn't that be so in so many of these narcotics cases?
MR. HALL: Well, we have to remember, Buie is based on safety of the officer. Destruction of evidence is not based on safety of the officer, and you might end up having to have two standards: probable cause for destruction of evidence, reasonable suspicion for safety to the officer.
QUESTION: Well, why doesn't knowledge that there's a gun in the house give rise to the safety of the officer concerned and the presence of marijuana in a place with indoor plumbing to the destruction of evidence? What more would you need to come within even the traditional exceptions?
MR. HALL: Because then you're creating a blanket exception without any belief in the facts.
QUESTION: No, not a blanket exception without any belief in the facts, these facts.
MR. HALL: Well--
QUESTION: There's a gun in that house. We know that. There's a warrant to search for narcotics.
MR. HALL: If the warrant is to search for

narcotics, then you've created a blanket exception that the police can enter any time that drugs are involved, and since 42 percent of all American households have guns in them, can you say that there's a reasonable suspicion there's a gun in the house? If you say that, there's no knock and announce. There's no need for it any more. And then, if that happens, then we're all--
QUESTION: Well, what would be enough to have a concern about the safety of the officer? You say the presence of a gun, even a gun named in the warrant, is not enough. What would it have to be?
MR. HALL: In this case, I think you could say there was enough in this case because you've got an alleged threat to the informant. You've got a threat of force by the use of that gun, not just the mere presence of a gun, but a suggestion that a gun would be used, and I would agree that that would have to be enough to get over that.
QUESTION: A gun plus someone who is reasonably suspected of being a violent person willing to use that gun.
MR. HALL: Willing to use the gun.
QUESTION: Yes.
MR. HALL: If the guy's got a history of beating up people, I would say that would be enough, given the presence of a gun as well, but these are all hypotheticals that are way beyond the facts. But just the mere presence of a gun in the cases under the Federal statute hasn't been enough. But there's one curious case that the Solicitor General cites where a guy was wearing a bullet proof vest...

QUESTION: Why isn't it reasonable--you don't have to go--they go back to Edward I. I didn't even know whether he invaded Scotland, or whatever, but they trace it back to Edward I, and even today, isn't it still a reasonable thing that you shouldn't knock down the door of somebody's house where you're not afraid of any harm, and you don't have any reason to think somebody's going to destroy evidence? I mean, why isn't that a reasonable thing, in that instance, even if it weren't going back to Edward I, and if you are, well, so much the stronger?
GENERAL BRYANT: Your Honor, that would be reasonable, and that's the State's position. The officers in the field should be able to make a decision, and Arkansas is not asking this Court to prohibit knock and announce.
QUESTION: You know that they'd require--you'd require it because it's reasonable, and

unreasonable not to knock and announce where they're not going to destroy any evidence, you have no reason for thinking so, you have no reason for thinking there's any danger, and there's this pedigree in history saying that it's unreasonable under those circumstances. What's the answer to that?

GENERAL BRYANT: Your Honor, in this case the officers had a search warrant, and there was a probable cause requirement met that there was illegal contraband on premises plus there was a weapon on premises, and in situations where the officers serve a warrant, they are at great risk, and the rule that Arkansas is suggesting would provide for the protection of officers, the protection of occupants by standards if present, as well as legitimate law enforcement principles of preventing the escape of suspects, preventing the destruction of evidence, and this Court has said that a categorical rule is best developed which will give the officers firm guidance in the field. They are not placed in the position of deciding whether I should knock or announce, or what exception applies, and the State submits that that is the reasonable approach in this case.

The Fourth Amendment does not require knock and announce, and the petitioner would have this Court elevate knock and announce as an absolute, rigid requirement of the Fourth Amendment, and Arkansas does not believe that that is proper, and it's not required by the Fourth Amendment.

If, under the facts of Wilson, the Court chose not to endorse a blanket rule, than surely, under the fact of the case at bar, the Court could not mean to give tacit approval to an analysis that begins and ends with: "Did the police have a valid search warrant to search a home for evidence of drug dealing?" In the case at bar, there was absolutely no evidence that the petitioner possessed weapons, and, in fact, no weapons were located on his person or in the premises searched. Under these circumstances, it is unconscionable to permit such an

interpretation of Wilson to stand. If, on the other hand, this is what the Court intended, this should be clarified for the benefit of those jurisdictions that do not think Wilson opened the door for imposition of blanket exceptions.

Prior to State v. Stevens, 181 Wis. 2d 410, 511 N.W.2d 591 (1994), Wisconsin had no blanket exceptions to the rule of announcement. The announcement rule was first recognized as the law of Wisconsin in Hiller v. State, 190 Wis. 369, 209 N.W. 260 (1926), overruled on other grounds, Glodowski v. State, 196 Wis. 265, 280 N.W. 260 (1928).

In 1984, the court applied the rule in State v. Cleveland, 118 Wis. 2d 615, 348 N.W.2d 512 (1982), and in 1992, the court further discussed the rule and its non-blanket exceptions in State v. Williams, 168 Wis. 2d 970, 465 N.W.2d 42 (1992).

The Stevens decision, like the Arkansas court's opinion in State v. Wilson, 317 Ark. 548, 878 S.W.2d 755, 758 (1994), seemed to be based at least in part on the proposition that such rule was mere common law and not constitutional in force. Stevens, 181 Wis. 2d at 421. ["The Supreme Court has not, however, determined whether the rule of announcement is a constitutional requirement."] The Arkansas court had based its denial of Wilson's appeal on the proposition, "There is no

authority for Ms. Wilson's theory that the knock and announce principle is required by the Fourth Amendment." 317 Ark. 548, 878 S.W.2d 755, 758 (1994).

In fact, although there was then difference of opinion on this point among the commentators[1], the earlier case of Ker v. California, 374 U.S. 23 (1963) lacked a majority finding that the rule formed a part of the Fourth Amendment. Wilson established beyond dispute that although such rule had an English common-law heritage, the founders were clearly aware of the rule; thus follows a presumption in favor of announcement which is incorporated into the Fourth Amendment. 115 S. Ct. at 1917-18

In Wisconsin, there was hope that after the Supreme Court reversed Wilson that the Wisconsin supreme court would change course on Stevens. The case at bar provided such an occasion, however, the Wisconsin supreme court unfortunately decided not to avail itself of this opportunity.

Announcement is thus constitutionally presumed. "Certain" rather than "general" circumstances justify departure from the rule: Wilson listed "certain circumstances" under which the presumption could be overcome. 115 S. Ct. at 1918-19:

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[1] See e.g. Garcia, The Knock and Announce Rule: A New Approach to the Destruction of Evidence Exception, 93 Colum. L.Rev. 685 (1993).

> [T]he courts continued to recognize that under certain circumstances the presumption in favor of announcement necessarily would give way to contrary considerations...[C]ourts acknowledged that the presumption in favor of announcement would yield under circumstances presenting a threat of physical violence... Similarly, courts held that an officer may dispense with announcement in cases where a prisoner escapes from him and retreats to his dwelling...Finally, courts have indicated that unannounced entry may be justified where police officers have reason to believe that evidence would likely be destroyed if advance notice were given...We need not attempt a catalogue of the relevant countervailing factors here. For now, we leave to the lower courts the task of determining the circumstances under which an unannounced entry is reasonable under the Fourth Amendment.

The Wisconsin supreme court has chosen to ignore the traditional exceptions to the announcement rule as guidelines in determining when police may dispense with announcement. Rather than pay attention to the presence or absence of certain circumstances per the language of Wilson, the Wisconsin court has determined that the general circumstance of being a case about drug dealing is enough to overcome the presumption.

THE COURT SHOULD GRANT CERTIORARI TO ESTABLISH UNIFORMITY OF THE LAW ON THE VALIDITY OF BLANKET EXCEPTIONS TO THE ANNOUNCEMENT RULE BECAUSE PRESENTLY WISCONSIN IS ALONE AMIDST STATE COURTS OF FINAL RESORT ADOPTING A BLANKET EXCEPTION AFTER WILSON AND NO CIRCUIT OF THE FEDERAL COURTS OF APPEALS HAS RECOGNIZED SUCH AN EXCEPTION.

The Court ought to grant certiorari due to a need for a uniform rule on this point. See Commissioner v. Bilder, 369 U.S. 499, 501 (1962). Wisconsin, as will be shown, is alone amidst state courts of final resort to

adopt a blanket rule after Wilson.[2]

While a mid-level appellate court in Oregon reversed a conviction on hearsay grounds entirely unrelated to the entry, it stated in dicta:

> The characteristics of controlled substances are such that they could easily be destroyed if the officers had been required to undergo a prolonged wait after their announcement. That is a circumstance in this case that justifies the reasonableness of a forced entry after waiting only four seconds.

State v. Ordonez-Villanueva, 138 Or. App. 236, 908 P.2 333 (1995). The Oregon court approved a no-knock entry to execute a search warrant for controlled substances, finding such entry was reasonable under Wilson. In that case, an informant had previously seen controlled substances which might be easily destroyed if police complied with the knock-and-announce rule.

The following state courts declined to adopt a blanket rule after Wilson:

Robinette v. Carlisle, ____ S.W.2d ____ (Docket No.

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[2] Prior to Wilson, courts adopted blanket rules regarding entries for drug searches in People v. Lujan, 484 P.2d 1238, 1241 (Colo. 1971); Henson v. State, 204 A.2d 516, 519-20 (Md. 1964); and State v. Meyer, 311 N.W.2d 520, 524 (Neb. 1981). All three jurisdictions did so under the mistaken belief that knock and announce was not a part of the Fourth Amendment. It does not appear that any of the three courts above have revised their position since the issuance of Wilson.

Although it has been argued that other jurisdictions have found blanket rules, such an argument is without support. See State v. Stevens, 181 Wis. 2d 410, 438, 511 N.W.2d 591 (1994) (Abrahamson, J., concurring).

2-96-074-CV, Texas App. June 27, 1996) (specific factual analysis conducted); State v. Moore, 535 N.W.2d 417 (Neb. Ct. App. 1995) (no- knock entry to execute search warrant on drug dealer's premises unreasonable under Wilson. Because a large amount of marijuana was to be seized, the police believed it would be difficult to destroy the drugs rapidly. Further, there was no evidence that the suspect was armed or dangerous); State v. Vargas, 910 P.2d 950 (N.M. Ct. App. 1995) (Holding reasonable a no-knock entry to arrest drug suspects pursuant to warrant. Suspicion that defendants traffic in drugs and possess weapons does not by itself excuse compliance with knock and announce. A review of the particular circumstances in the record revealed evidence of defendants' violent tendencies and established reasonableness of a no-knock entry); State v. Mastracchio, 672 A.2d 438, 443 (R.I. 1996) (The court remanded to the circuit court the issue of whether unannounced entry was reasonable because, although the government said such entry was justified to preserve officer safety and to prevent destruction of evidence, the circuit court had not made adequate findings of fact or reached a determination that this entry was reasonable under the circumstances); Hargrave v. Commonwealth, 464 S.E.2d 176, 179 (Va. Ct. App. 1995),

> [T]he courts have attempted to balance the purpose of the knock and announce rule and the

> needs of law enforcement by requiring that police have probable cause to believe an unannounced entry is necessary to prevent the destruction of evidence.

State v. Knight, 459 S.E.2d 481, 489 (N.C. 1995),

> A careful review of the record reveals that in the instant case...exigent circumstances existed justifying the forced entry of the Winston-Salem police officers into the defendant's residence after notification and a brief delay.

Thus, there was fact-specific analysis, not application of a blanket rule.

In Commonwealth v. Warnum, 656 N.E.2d 579, 581 (Mass. 1995), rather than find that Wilson justified a blanket rule, the court conducted this analysis: "In the special circumstances of this case, the objectives of the rule were substantially achieved." The Massachusetts court further found that the readily-disposable nature of drugs alone is not an exigent circumstance -- a court must look to the facts surrounding the entry. State v. Schimpf, 914 P.2d 1206, 1208 (Wash. App. 1996). The court looked to the particular facts of the case, but determined that there was no home entry, because the entry was to a backyard.

Further, no circuit of the federal courts of appeals has adopted a blanket rule in this area. The opinion of the Ninth Circuit of the Federal Court of Appeals in United States v. Ramirez, 91 F.3d 1297 (9th Cir. 1996) demonstrates this point:

> We also found no exigency where all the police

had was a generalized concern about drug dealers. See United States v. Moreno, 701 F.2d 815, 817-18 (9th Cir. 1983), vacated on other grounds, 469 U.S. 913 (1984).

The same sort of generalized unspecified concerns proved insufficient in United States v. Becker, 23 F.3d 1537, 1541 (9th Cir. 1994). But see Judge Kozinski's dissent in Ramirez, 91 F.3d 1297 at ____, stating:

> The majority opens up a square conflict with United States v. Turner, 926 F.2d 883 (9th Cir. 1991), cert. denied, 502 U.S. 830... a case where we upheld a no-knock entry.

The statement in Ramirez relating to "generalized concern about drug dealers" was dicta, therefore the conflict, if any, within the Ninth circuit does not directly relate to the rejection of a blanket rule for drug cases. As of this writing, the undersigned is unaware of whether the government will seek an en banc review in Ramirez. Even so, the Court should not hold the Ninth Circuit situation as a reason to hold off on granting certiorari in the present case because the issue of possible internal conflict does not turn on the rejection of a blanket rule.

In the Fourth Circuit, the court found that a generalized fear of destruction of evidence was insufficient to justify suspending the rule. Bonner v. Anderson, 81 F.3d 472, 475 (4th Cir. 1996). Denying a police officer defendant's interlocutory appeal of a denial of summary judgment in a civil suit, the Fourth

circuit judges all agreed, including the dissenting judge (81 F.3d at 476-7), that a case-by-case determination needs to occur. This re-affirmed the court's prior holding in United States v. Kennedy, 32 F.3d 876, 882 (4th Cir. 1994).

The Fifth Circuit found in United States v. Fike, 82 F.3d 1315, 1324 (5th Cir. 1996), that if an unannounced entry is made, the government bears the burden to justify the departure, but the court did not actually reach the question of whether there was justification, finding as a matter of fact, that no breaking had occurred. It can be inferred, however, from the opinion, that the Fifth circuit would require specificity of circumstances.

The Eighth Circuit held in United States v. Murphy, 69 F.3d 237, 242-43 (8th Cir. 1995), cert. denied, 116 S. Ct. 1032 (1996), that an entry in order to execute a search warrant on drug manufacturer's premises was reasonable under Wilson, finding that "particular facts regarding the premises to be searched" and "circumstances surrounding the execution of the warrant" established exigent circumstances. In the Murphy case, police had been informed prior to the search that the defendant carried a weapon on occasion, that weapons were present on the premises, that the defendant had a violent past and that he was on parole for second-degree murder.

The First Circuit in United States v. Jewell, 60

F.3d 20, 23-24 (1st Cir. 1995) ruled that Wilson requires a determination of whether an affidavit presented in support of an application for a no-knock warrant describes circumstances establishing that a unannounced entry would be reasonable.

The Sixth Circuit rejected a blanket rule in United States v. Bates, 84 F.3d 790 (6th Cir. 1996). For a discussion of the status of Bates, please see infra., page 5. The court examined the specific circumstances of the case, i.e., an informant's report of the presence of a handgun, the fear that cocaine would be destroyed, and the barricading of the apartment door. The panel found that these factors taken together did not constitute exigent circumstances.

The Third Circuit in Bodine v. Warwick, 72 F.3d 393, 398 (3rd Cir. 1995), interpreted Wilson as requiring a demonstration of particularity of circumstances.

Even prior to Wilson, in the Tenth Circuit, the court in United States v. Stewart, 867 F.2d 581 (10th Cir. 1989) found that where the government could not provide specific facts to demonstrate exigent circumstances, suppression for failure to comply with the rule was upheld. Such holding appears only strengthened by Wilson; see United States v. Smith, 63 F.3d 956 (10th Cir. 1995). The Second, Seventh and District of Columbia Circuits do not appear to have issued opinions as of this

writing interpreting Wilson.

Further, certiorari should be granted because there are no adequate and independent state grounds supporting the lower court opinion. The law of the state of Wisconsin regarding Fourth Amendment issues is interwoven with federal law and the adequacy of any possible state law grounds is not clear from the face of the opinion. See Michigan v. Long, 463 U.S. 1032, 1040-41 (1983). In any case, independent state grounds cannot be pled where a violation of the federal constitution is involved.

Wisconsin Constitution Art. I, sec. 11 reads:

> The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures shall not be violated; and no warrant shall issue but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

Punctuation aside, this language is identical to the Fourth Amendment with the exception that the Fourth Amendment uses "warrants" in the plural.

While the Wisconsin supreme court may interpret Wis. Const. art. I, § 11 more strictly than the United States Supreme Court interprets the Fourth Amendment, the Wisconsin court has consistently and routinely conformed the law of search and seizure under the Wisconsin Constitution to the law developed by the United States Supreme Court under the Fourth Amendment. State v. Williams, 168 Wis. 2d 970, 981, 485 N.W.2d 42 (1992).

Lastly, the Court should grant certiorari to avoid needless citizen and officer deaths. Innocent people will die as a result of the lower court decision. See State v. Richards, 201 Wis. 2d 839, 870, fn. 12, 549 N.W.2d 218 (1996) (Abrahamson, J. concurring). No-knock entries raise the risk of officers being shot by law-abiding residents who do not realize that those invading the home are police. Id. Householders will be killed, too. See Bovard, Oops, You're Dead: The Body Count from No-Knock Drug Raids is Climbing. Are You Next? Playboy 50-51 (Dec. 1994).

CONCLUSION

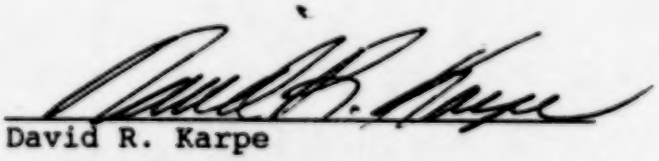
In Wilson, the United States Supreme Court said that compliance with the announcement rule must form a part of Fourth Amendment reasonableness analysis. The Wisconsin Supreme Court, in the case at bar, found that a blanket exception is acceptable in felony drug cases. The effect of such an exception is widespread, and the law is in great need of clarification as to what reasonableness requires: does the requirement of particularity compel a case-by-case analysis, or is a general finding "this is a drug case, therefore compliance is never necessary" acceptable? Need a court ask only two questions about police entry into a home: 1. Was there a warrant? 2. Is this a drug case? Does this satisfy the reasonableness requirement?

The lower court opinion conflicts with the Wilson decision in not requiring particularity of circumstances to justify unannounced entry. In effect, if the announcement rule forms part of the Fourth Amendment, particularity should be required.

Further, there is a need for uniformity in the law due to the confusion that ensues as to whether a balancing need occur in drug cases.

In order to answer these questions for courts throughout the nation, the petition for a writ of certiorari should be granted. Officer and householder safety requires the grant of certiorari.

Respectfully submitted,



David R. Karpe

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Attorney for Petitioner

No. _____

IN THE SUPREME COURT
OF THE UNITED STATES OF AMERICA

OCTOBER TERM, 1995

STEINEY J. RICHARDS, PETITIONER

VS.

THE STATE OF WISCONSIN, RESPONDENT.

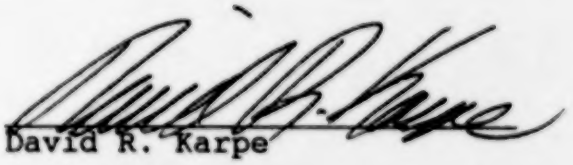
ON PETITION FOR WRIT OF CERTIORARI TO THE
SUPREME COURT OF THE STATE OF WISCONSIN

PROOF OF SERVICE

I, David R. Karpe, counsel of record for petitioner, swear that on this date, September 10, 1996, as required by Supreme Court Rule 29, I have served the enclosed MOTION TO PROCEED IN FORMA PAUPERIS and PETITION FOR A WRIT OF CERTIORARI on each party to the above proceeding and that party's counsel, and on every person required to be served, by depositing an envelope containing the above documents in the United States mail properly addressed to each of them and with first-class postage pre-paid.

The names and addresses of those served are:

James E. Doyle, Attorney General
Stephen W. Kleinmaier, Assistant Attorney General
Wisconsin Department of Justice
P.O. Box 7857
Madison, Wisconsin 53707



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APPENDIX A

NOTICE
This opinion is subject to further editing and modification. The final version will appear in the bound volume of the official reports.

No. 93-0391-CR

STATE OF WISCONSIN : IN SUPREME COURT

State of Wisconsin,

Plaintiff-Respondent,

v.

Steiney J. Richards,

Defendant-Appellant-Petitioner.

FILED

JUNE 12, 1996

Marilyn L. Graves
Clerk of Supreme Court
Madison, WI

REVIEW of a decision of the Court of Appeals. *Affirmed.*

WILLIAM A. BABLITCH, J. Steiney J. Richards (Richards) seeks review of a decision of the court of appeals affirming his conviction for possession of cocaine base with the intent to deliver. Richards argues that because the police failed to "knock and announce" prior to entering his motel room to execute a search warrant, any evidence seized must be suppressed. The issue is simply stated: whether the Fourth Amendment allows a blanket exception to the general requirement of "knock and announce" (the rule of announcement) for entries into premises pursuant to a search warrant for evidence of felonious drug delivery. We conclude that exigent circumstances are always present in the execution of search warrants involving felonious drug delivery: an

extremely high risk of serious if not deadly injury to the police as well as the potential for the disposal of drugs by the occupants prior to entry by the police.[1] The public interests inherent in these circumstances far outweigh the minimal privacy interests of the occupants of the dwelling for which a search warrant has already been issued. Accordingly, we re-affirm State v. Stevens, 181 Wis. 2d 410, 511 N.W.2d 591 (1994), cert. denied, 115 S. Ct. 2245 (1995), and conclude that police are not required to adhere to the rule of announcement when executing a search warrant involving felonious drug delivery.[2]

As a prefatory note, we took this case to examine the continuing validity of Stevens in light of the recently decided U.S. Supreme Court case of Wilson v. Arkansas, 115 S. Ct. 1914 (1995). We conclude that Stevens remains valid. In Stevens, this court adopted a blanket exception to the rule of announcement in cases involving a search warrant for felonious drug delivery.

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[1] The concurrence's position would, in many instances, place the police in situations of great personal risk. It makes neither good law nor good sense. Despite the overwhelming evidence across the country of the inherent dangerousness of these situations, the concurrence would deny the police the right to forego "knock and announce" unless the police had specific information about the dangerousness of the drug house to be searched and specific information about the dangerousness posed by its occupants. Thus, in those cases in which such specific information is unavailable, the concurrence would force the police into the untenable position of subjecting themselves to extremely high risks detailed in this opinion. We decline to follow the concurrence's invitation.

[2] We use the phrase "felonious drug delivery" to mean felonious delivery of drugs or felonious possession with intent to deliver drugs in violation of Subchapter IV, Wis. Stat. §§ 161.41, 161.42 and 161.43.

Wilson, decided subsequently to Stevens, held that the rule of announcement forms part of the Fourth Amendment reasonableness inquiry. The Court in Wilson left it to the lower courts to determine the circumstances under which an unannounced entry is reasonable under the Fourth Amendment. We proceed to do so now.

The dispositive facts for purposes of this appeal can be stated succinctly: on December 31, 1991, police executed a search warrant for the motel room of the defendant seeking evidence of the felonious crime of Possession with Intent to Deliver a Controlled Substance in violation of Wis. Stat. § 161.41 (1m)(1991-92).[3] They did not knock and announce prior to their entry. Drugs were seized.

The circuit court denied Richards' motion to suppress. Richards subsequently entered pleas of no contest to the felony of possession of cocaine base with the intent to deliver, Wis. Stat. § 161.41(1m), and a tax stamp violation, Wis. Stat. § 139.95(2).[4]

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[3] All future statutory references will be to the 1991-92 volume unless otherwise indicated. Wis. Stat. § 161.41(1m) provides in relevant part:

> (1m) Except as authorized by this chapter, it is unlawful for any person to possess, with intent to manufacture or deliver, a controlled substance.

[4] Wisconsin Stat. § 139.95(2) states, in relevant part:

> (2) A dealer who possesses a schedule I controlled substance or schedule II controlled substance that does not

(continued...)

The court found him guilty and sentenced him to 13 years imprisonment on the possession with intent count and three years concurrent imprisonment on the tax stamp count. Richards appealed. The court of appeals upheld the circuit court's ruling, relying on Stevens. Richards filed a petition for review which we granted.

The sole issue before this court is whether the Fourth Amendment to the United States Constitution[5] allows a blanket exception to the general requirement of "knock and announce" for entries into premises pursuant to a search warrant for evidence of felonious drug delivery. This is a question of law that we review without deference to the lower courts. State v. Betterley, 191 Wis. 2d 406, 416-17, 529 N.W. 2d 216 (1995).

Richards summarizes the issue in one sentence: "The blanket 'drug house' exception to the 'knock and announce' rule violates the Fourth Amendment's reasonableness requirement." Richards contends that the U.S. Supreme Court decision in Wilson forbids

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[4](...continued)

> bear evidence that the tax under s. 139.88 has been paid may be fined not more than $10,000 or imprisoned for not more than 5 years or both.

[5] Amendment IV of the United States Constitution states:

> The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

blanket rules regarding search and seizure because the reasonableness of each search must be examined on a case-by-case basis. The State of Wisconsin (State) argues that Wilson does not forbid blanket rules and, under Wilson, the blanket rule announced in Stevens is still valid. We agree with the State.

The Fourth Amendment to the United States Constitution and Wisconsin Constitution art. I, § 11 protect the security of people "in their persons, houses, papers, and effects against unreasonable searches and seizures." While this court may interpret Wis. Const. art. I, § 11 more strictly than the United States Supreme Court interprets the Fourth Amendment, it has consistently and routinely conformed the law of search and seizure under the Wisconsin Constitution to the law developed by the United States Supreme Court under the Fourth Amendment. State v. Williams, 168 Wis. 2d 970, 981, 485 N.W. 2d 42 (1992); see State v. Guzman, 166 Wis. 2d 577, 586-87, 480 N.W.2d 446 (1992).

The Fourth Amendment proscription against unreasonable searches and seizures not only requires that there be probable cause to undertake the search or make the seizure but also that the search or seizure be conducted in a reasonable manner. Tennessee v. Garner, 471 U.S. 1, 7-8 (1985). The rule of announcement, which requires police officers seeking to enter a dwelling in the execution of a search warrant to announce their identity and allow time for the door to be opened voluntarily, addresses the manner in which a legitimate governmental intrusion is to take place.

Williams, 168 Wis. 2d at 981. The rule of announcement has a common law heritage and serves three primary justifications: (1) protecting the individual's privacy in the home; (2) decreasing the potential for violence by alerting the resident that the officer is legitimately on the premises; and (3) preventing the physical destruction of property by giving the resident the opportunity to admit the officer voluntarily. Id. at 981-82. Under certain circumstances, a search is reasonable under the Fourth Amendment even if the police dispense with the rule of announcement and execute a no-knock entry. Wilson, 115 S. Ct. at 1918-19; see also Stevens, 181 Wis. 2d at 423. The knock and announce rule may be excused if "exigent circumstances" exist to justify the no-knock entry. United States v. Singer, 943 F.2d 758, 762 (7th Cir. 1991). Exigent circumstances "'include a reasonable belief that announcement of police presence would endanger the safety of the police or others, or a reasonable belief that unannounced entry is required to prevent the destruction of evidence.'" Williams, 168 Wis. 2d at 982 (citations omitted).

These "exigent circumstances" formed the basis of our decision in State v. Stevens. In Stevens, we held that when the police have a search warrant, supported by probable cause, to search a residence for evidence of delivery of drugs or evidence of possession with intent to deliver drugs, they necessarily have reasonable cause to believe exigent circumstances exist. Stevens, 181 Wis. 2d at 424-25. We reasoned that the rationale behind the

rule of announcement was no longer valid in today's drug culture. "In fact, by announcing their presence, police may actually increase the likelihood for violence." Id. at 428. When the police execute a search warrant for evidence of drug delivery, there is reasonable cause to believe both that drugs will be destroyed and evidence lost, and that the occupants of the residence will be armed. Id. at 432. Therefore, a no-knock search is reasonable any time the police have a warrant, supported by probable cause, to search a residence for "evidence of drug dealing." Id. The limited privacy interests of the individual were balanced against two other governmental interests: the public's substantial interest in stopping or at least curtailing the drug trade and its related crimes, and the police officers' interest in protecting themselves and others from harm. Id. This court concluded:

> When the police execute a search warrant for evidence of delivery of drugs or evidence of possession with intent to deliver, there is reasonable cause to believe both that the drugs will be destroyed and evidence lost and that the occupants of the residence will be armed . . . Even when the police dispense with the entire knock and announcement, the societal interest in stopping the drug trade, combined with the police officers' safety interest, outweigh the occupants' limited privacy interests.

Stevens, 181 Wis. 2d at 432.

Richards contends that the practical effect of Stevens is a flat rule which cannot be valid given the level of intrusion and the fact that too much discretion is allowed to police officers.

Richards argues that the blanket exception to the knock and announce rule is inconsistent with the U.S. Supreme Court's decision in Wilson.

In Wilson, the defendant challenged a police entry into her home pursuant to a search warrant authorizing a search for evidence of drugs and drug paraphernalia. The defendant's suppression motion alleged that the police violated the common law principle requiring them to knock and announce their presence and authority before entering. The U.S. Supreme Court held that whether the officers knock and announce their presence and authority before entering a dwelling as required by the common law "forms a part of the Fourth Amendment reasonableness inquiry." Id. at 1916. The Court, however, noted that not all unannounced entries are unreasonable. "[L]aw enforcement interests may also establish the reasonableness of an unannounced entry." Id. at 1919. The Court stated:

> This is not to say, of course, that every entry must be preceded by an announcement. The Fourth Amendment's flexible requirement of reasonableness should not be read to mandate a rigid rule of announcement that ignores countervailing law enforcement interests. As even petitioner concedes, the common-law principle of announcement was never stated as an inflexible rule requiring announcement under all circumstances.

Id. at 1918. The Court recognized that under certain circumstances, the presumption in favor of announcement necessarily gives way to contrary considerations. These contrary considerations include the threat of physical harm to the police,

the pursuit of a recently escaped arrestee, or the belief that evidence will likely be destroyed. Id. The Court stated:

> We need not attempt a comprehensive catalog of the relevant countervailing factors here. For now, we leave to the lower courts the task of determining the circumstances under which an unannounced entry is reasonable under the Fourth Amendment.

Id. at 1919.

Richards argues that the blanket "drug house" exception to the knock and announce rule adopted by this court in Stevens is no longer viable in light of Wilson. Richards further contends that Wilson requires a reasonableness analysis to be performed for every unannounced search and seizure. We disagree.

In Stevens, this court did not announce a blanket rule doing away with the common law rule of announcement. Instead, we adopted a narrow exception to the general rule: when police have a search warrant to search a premises for evidence of felonious drug delivery, they do not have to knock and announce. When police have probable cause to support a search warrant for evidence of felonious drug delivery, the potential for dangerousness to the police and the potential for the destructibility of evidence is so great as to overcome the general rule. The very facts supporting probable cause to believe that drugs and drug dealers are present in a dwelling also lead to the reasonable belief that exigent circumstances exist. In sum, we conclude that exigent

circumstances are always present when a search warrant for evidence of felonious drug delivery is executed.[6]

Wilson does not forbid blanket rules; rather, it requires such rules to be supported by the standard of "reasonableness." The Court left it to the lower courts to determine "the circumstances under which an unannounced entry is reasonable under the Fourth Amendment." Wilson, 115 S. Ct. at 1919.

The reasonableness of a search generally turns on whether it was conducted pursuant to a valid warrant. U.S. v. U.S. District Court, 407 U.S. 297, 309-10, 314-15 (1972). In deciding whether a particular police practice is reasonable, the Court has repeatedly said that the importance of the public interests must be weighed against the nature of the intrusion upon Fourth Amendment rights. Maryland v. Buie, 494 U.S. 325, 332 (1990). The Court stated that

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[6] The State's brief argues extensively concerning the "level of justification" the Fourth Amendment requires before the police can legally make an unannounced entry to execute a search warrant for evidence of drug dealing. The State argues that the proper level of justification for a no-knock entry is a reasonable suspicion that an announcement would endanger the safety of the officers and/or occupants, or a reasonable suspicion that an announcement would result in the destruction of evidence.

We need not address what level of justification is necessary in this case. Here, we are dealing with the particular circumstances of a search warrant for evidence of felonious drug delivery. Our holding is based on the assumption that drug dealers will have weapons and pose a danger to officers, and that drug dealers will destroy evidence or at least attempt to destroy evidence after announcement by the police. Therefore, because exigent circumstances are always present, we do not address the issue concerning what level of justification is needed for a no-knock entry. This issue must be left to a case in which drugs are not involved.

the balancing of these competing interests is "'the key principle of the Fourth Amendment.'" Gardner, 471 U.S. at 8 (citation omitted).

We balance these competing interests by looking first to the public interests involved when police execute a search warrant for felonious drug delivery. Law enforcement officers have a substantial interest in being able to secure the site so that it may be searched promptly, efficiently and safely. The success of police in searching for evidence and instrumentalities of drug dealing depends on their ability to establish command of the scene quickly and to secure the safety of themselves, the occupants and the place to be searched. Note, D. Allegro, Police Tactics, Drug Trafficking, and Gang Violence: Why the No-Knock Warrant Is an Idea Whose Time Has Come, 64 Notre Dame L. Rev. 552, 553 (1989) [hereinafter Allegro].

Police officers face an unquantifiable risk of violence every time they go into a house to execute a search warrant.[7] The Court

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[7] The following represents only some of the recent newspaper articles documenting the escalating violence police face each day:

> A man was killed, and a Columbus police officer was slightly wounded last night during a drug raid. It was the second time this year that officers have been wounded in Near East Side Raids.

Erin Marie Medick, Man Slain, Swat Officer Wounded Shootings Came in Near East Side Raid, The Columbus Dispatch, Mar. 15, 1996.

(continued...)

[7](...continued)

> Designed to serve search warrants on crack houses, the Columbus Police Division's investigative and tactical unit is trained to enter homes where the risk of retaliation and gunfire is high. . . . The shooting occurred after police announced - as required by law - that they would be coming into the house, said Lt. William McKendry of the division's narcotics squad.

Alice Thomas, Drug Raids Becoming Riskier For Police, The Columbus Dispatch, Jan. 19, 1996.

> Interviews with police officers and a ballistics study will be used to determine who shot an Omaha police officer when police burst into a home to make an arrest Tuesday night, police said.

Angie Brunkow, Origin of Shot That Hit Officer Sought, The Omaha World-Herald, Mar. 1996.

> Police raided what they said was a family-run drug house early Saturday morning and then went into the drug business for a few hours. . . . Police confiscated 105 bags of heroin worth $2,600, about $5,000 worth of crack cocaine and six guns.

Karen Henderson, Raid-Sting at Drug House Leads to 10 Arrests, The Plain Dealer, Feb. 12, 1996.

> At least seven kinds of illegal drugs worth about $50,000, four guns and $36,500 in cash were seized by police when they raided a Spring Township house Wednesday morning, according to officials. . . . "This is the kind of thing we're used to finding, this and a lot more," he said, gesturing to an illegal sawed-off 12-gauge shotgun and a TEC-DC9 9mm semiautomatic pistol with a 30-bullet clip.

Steven Reinbrecht, Police Raid Spring Twp. House, Confiscate Drugs, Guns and Cash, Reading Eagle, Reading Times, Feb. 15, 1996.

> A SWAT team leading a force of more than 100 officers Wednesday raided an apartment building that police said had been turned into a fortress by drug dealers. . . . "There were armed guards at all entrances to the building, armed internal patrols 24 hours a day.

(continued...)

has recognized the unique danger police officers face in suspects' houses because the officers are coming onto their adversaries' "turf" which has a configuration unknown to the officers. In Maryland v. Buie, 494 U.S. 325 (1990), the Court acknowledged that:

> The risk of danger in the context of an arrest in the home is as great as, if not greater than, it is in an on-the-street or road-side investigatory encounter. . . [A]n in-home arrest puts the officer at the disadvantage of being on his adversary's "turf." An ambush in a confined setting of unknown configuration is more to be feared than it is in open, more familiar surroundings.

Id. at 333.

As one commentator notes, the risk that police must face is greatly increased by a knock and announce requirement:

> [A] police officer making a high-risk warrant entry is at a severe disadvantage. When he announces authority and purpose he makes himself readily identifiable. The suspect, concealed inside a house, will generally be able to see the officer, or know where the officer is since he is most often near the door. Even if the officer can see occupants inside the house, he does not know if they intend to resist unless they are naive enough to reveal their violent intentions. The officers are most vulnerable when entering the house. If the announcement has given the [suspect] time to arm himself, all he needs to do is aim his firearm at the door and wait for a target to appear.

Allegro, at 566 (footnotes omitted).

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[7](...continued)
All the key players were in constant contact with each other with hand-held radios." . . . That drug dealers could control an entire building in a city like Racine shows that "the drug thing is all over the place," Higgins said. "It doesn't matter how big the city is. This is like a nest."

Ann Bothwell, SWAT Force Raids Racine Drug House, The Milwaukee Journal, Jan. 29, 1992.

These risks are only heightened when drugs are involved.[1] The connection between drugs and weapons has been well documented by appellate courts. Michigan v. Summers, 452 U.S. 692, 702 (1981); Stevens, 181 Wis. 2d at 420, 428-29; Williams, 168 Wis. 2d at 984-85; United States v. Kennedy, 32 F.3d 876, 882 (4th Cir. 1994) ("[T]he law has uniformly recognized that substantial dealers in narcotics possess firearms and that entrance into a situs of drug trafficking activity carries all too real dangers to law enforcement officers."); and State v. Harris, 384 S.E. 2d 50, 53 (N.C. App. 1989). The connection between drugs and weapons establishes that it is more than a possibility that guns will be found at the location that is the subject of a search warrant for drug dealing. Reporting on a study which concluded that drug dealers and gang members are the criminals most likely to use guns, an article in the New York Times noted:

> It is drug dealers, rather than drug users, who use guns, Professor Decker said, because they are usually carrying valuable quantities of drugs and large amounts of money and need the protection of a gun more than ordinary users.

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[1] Statistics indicate that drug related violence is a growing contributor to police mortality. From 1977 to 1986, of the police officers murdered, 6.5 percent, or 57 of 875, were killed in situations involving drug matters. In 1985, 7.6 percent of police murders were drug related, and in 1986, 10.6 percent of police murders involved drug matters. Federal Bureau of Investigation, Crime in the United States: Uniform Crime Reports (statistics extracted from annual reports from 1977-1986). See Allegro at 570, n.32.

Fox Butterfield, Study Discounts the Role of Drug Users in Gun-Related Crime, N.Y. Times, Oct. 8, 1995, at 36.

The study revealed that, among arrestees who admitted selling illegal drugs in the past year, 25 percent reported they carried a gun all or most of the time. Arrestees and Guns: Monitoring the Illegal Firearms Market, National Institute of Justice, Research Preview, September 1995. The results of this study show that the likelihood of finding guns during the execution of a search warrant for drug dealing is "more than a possibility." The 25 percent figure in the study relates only to arrestees; and among arrestees it reflects only the admitted use of guns. The use of guns by all drugs dealers is certainly higher than the use reflected in that study. Nevertheless, even using the 25 percent figure in the study, "requiring police to knock and announce their identity before executing all search warrants for drug dealing would be tantamount to requiring the police before each warrant execution to play Russian roulette with a four-chamber gun." (Respondent's brief at 23).

When suspects resist the police with firearms, officers face serious disadvantages.[9] Allegro, at 554. They are easily

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[9] Firearms claimed the lives of 92 percent of the officers killed in the line of duty from 1977 through 1986. Seventy percent of the murders were committed by the use of handguns, 13 percent by rifles, and 9 percent by shotguns. U.S. Department of Justice, Federal Bureau of Investigation, Uniform Crime Reports, Law Enforcement Officers Killed and Assaulted 4 (1986).

(continued...)

identified by spoken commands and uniform, while assailants may be difficult or impossible for the officers to see. Id. An assailant may determine when and where to shoot, and if he has time to prepare to resist, it takes him only half a second to fire an accurate shot from a cocked gun. Id. The police officer must evaluate whether the situation justifies use of deadly force, typically requiring evaluation of a series of factors, and if his or her gun is holstered, it takes him or her one to 1.2 seconds to draw and return fire. Id. at 554-55.

When an officer confronts a suspect who has a firearm in hand, in 40 percent of the cases the suspect will fire, will usually fire first, and will often shoot with a ballistically superior weapon. R.J. Adams & T.M. McTernan, Street Survival: Tactics for Armed Encounters 35 (1980). Police shootings almost invariably occur at close range and are over almost instantly.[10] Allegro, at 555.

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[9](...continued)
Nationwide, an average of 17 of every 100 law enforcement officers were assaulted in 1986, an increase of 7 percent from 1985. During the year, 64,259 line-of-duty assaults were reported by 9,755 law enforcement agencies covering approximately 81 percent of the total United States population. These agencies employed a total of 380,249 officers. Id. at 41. Nearly 22,000 law enforcement officers were reported to have received personal injuries resulting from their assaults. Id.

[10] In almost half of the cases, the officer is five feet or less away. Of the more than 250 police officer murders in New York City from 1854 to 1980, the assailant was more than 20 feet away when he fired in only one case. See S. Chapman, Cops, Killers and Staying Alive: The Murder of Police Officers in America 21 (1986) (noting that from 1972-1984, 52.4 percent of officers murdered were zero to five feet from their assailants and 20.6 percent were six to ten feet away).

> In the vast majority of cases, the officer is ten feet or less from the assailant. Normally, the initial exchange of gunfire is determinative, with most confrontations over in two to three seconds with no more than a total of three shots fired. Almost half the time, an officer will face multiple assailants. While the assailants will fire without regard to bystanders, the officer must accommodate their presence.

Id. at 555 (footnotes omitted).

In Michigan v. Summers, 452 U.S. 692, 702-03 (1981), the Court recognized that the "risk of harm to both the police and the occupants [of an area subject to a search] is minimized if the officers routinely exercise unquestioned command of the situation." The sooner the officers have complete control of the situation, the less likely it is that any confrontation between suspects and officers will escalate to the point of gunfire. Minimizing this risk, in turn, ensures the safety not only of the officers, but also of suspects and of innocent bystanders.

All of this points to the need for officers to control the scene immediately, not only for their own safety and the safety of others, but also to seize evidence of felonious drug delivery. After all, a search warrant commands officers to go to a particular place to seize evidence of drugs and drug paraphernalia. In Stevens, we recognized that the "easily disposable nature of narcotics provides police with evidence sufficient to form a reasonable belief that no-knock entry is necessary to prevent the destruction of evidence." Stevens, 181 Wis. 2d at 425. If officers must knock and announce their authority and presence, they

provide the occupants of the house with the opportunity not only to arm themselves, but to dispose of the evidence involving drugs.

Allowing police to take command of the situation is thus vital to the safe and effective execution of a search warrant for evidence of felonious drug delivery. Moreover, the officers executing a search warrant are in the best position to decide how to take command of the situation. In some cases, police officers will undoubtedly decide that their safety, the safety of others, and the effective execution of the warrant dictate that they knock and announce; in other cases, they might decide that such a procedure would be counterproductive or even dangerous. "In cases like this, where the police have a valid warrant, supported by probable cause, to search a home for 'evidence of drug dealing,' the officers executing the warrant have the incentive to choose the safest method of entry." Stevens, 181 Wis. 2d at 430. It is constitutionally reasonable to allow officers in the field to decide what course of action to pursue instead of requiring them to "take unnecessary risks. . . ." Terry v. Ohio, 392 U.S. 1, 23-24 (1968); see also Graham v. Connor, 490 U.S. 386, 396-97 (1989) (stating that the "calculus of reasonableness must embody allowance for the fact that police officers are often forced to make split-second judgments - in circumstances that are often tense, uncertain, and rapidly evolving. . . .").

We now weigh these public interests of dangerousness and disposability against the individual's interest in having notice

that a search warrant is about to be executed in a few short seconds. Richards argues that he has privacy interests in keeping the police outside of his dwelling until the police "knock and announce." Although we acknowledge that privacy interests in the home are fundamental, we also conclude that these interests are not sufficient to elevate Richards' privacy interests over the public's interest in having police officers safely and effectively execute a search warrant for evidence of felonious drug delivery.

Richards' privacy interests are only slightly advanced by a knock and announce rule. Although Richards correctly notes that people normally have the highest expectation of privacy in their homes, this argument is largely irrelevant in this case. There is no dispute that within a matter of seconds after the police arrived with a search warrant, they were entitled to enter Richards' dwelling, with or without permission, and conduct as thorough a search as was reasonably necessary. The search had been authorized by a neutral magistrate, and would have occurred regardless of whether the police knocked and announced their presence.

> It is difficult to see, however, what actual protection is given to any right of privacy by the announcement rule. Once identity and purpose are stated, entry must always be permitted; if permission is denied, or even delayed for an inordinate amount of time, entry may be forced, provided the officer has a valid purpose in gaining admission. Since no discretion is vested in the occupant, in what manner does notice protect his privacy? . . .
>
> Thus balanced, the protections to privacy seem to be somewhat tenuous when compared to the potential for public harm. This is particularly true with respect to

> potential destruction of evidence, especially when one considers that the probable cause requirement would have to be met in any event.

Sonnenreich and Ebner, No-Knock and Nonsense, An Alleged Constitutional Problem, 44 St. John's L. Rev. 626, 647 (1970).

Here, the disruption of privacy interests is almost entirely attributable to the valid warrant, not the unannounced entry. "[W]here the police have a warrant to search the property, the residents retain only a very limited interest in privacy." Stevens, 181 Wis. 2d at 432. In Stevens, we stated that:

> Even under the rule of announcement, after the police have announced their identity and purpose, the occupants must let them in within a reasonable time or the police may force their way in. The occupants' privacy interests are limited to knowing the police are entering and perhaps effecting the method of entry. The occupants do not have the right to refuse entry.

Id.

When we compare these limited privacy interests to the substantial interest the public has in allowing the police to safely and effectively execute a search warrant, the balance overwhelmingly favors the public interest.

Police have widely regarded narcotics enforcement as a particularly dangerous area of police work for some time. However, beginning in the early 1980's, the hazards to police officers escalated. Street gangs, spawned by decay in America's cities, and already known for their propensity for irrational violence, entered

the drug business on a major scale.[11] In the 1960's and 1970's, the police confronted and adjusted to a higher level of violence.

When the risks of law enforcement change radically, the rules by which courts regulate the police should reflect those changes. Therefore, we conclude that exigent circumstances are always present in the execution of search warrants involving felonious drug delivery. The public interests in these circumstances far outweigh the minimal privacy interests of the occupants of the

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[11] Street gangs have been documented in cities in the United States throughout most of the country's history, but accounts by the media, practitioners, and some researchers suggest that gangs are now posing a more serious crime problem than in the past. U.S. Department of Justice, National Institute of Justice, Street Gangs: Current Knowledge and Strategies 1 (1993). And while reports conflict about the extent to which gangs play an organized role in drug trafficking, recent research suggests that gang members are highly visible in the drug trade. Id.

In addition, it is easy for gang members to obtain weapons.

> It's real easy (for teenagers to get guns). You just have to have the money, and know somebody who can get one. Most gang members have . . . it's probably related to a drug dealer. They contact the drug dealer and tell him, "I pay so much for a gun." He'll say "OK, I'll sell it to you." A .12 gauge sawed-off would run, like, about 50 to 90 bucks. Nobody really ever buys a gun over 50 unless its a fully-automatic. . . . One of the main interests when someone (a gang member) breaks into a house [is] to look for guns or money. Really the guns they want to look for.

Catherine H. Conly, Hearing Summary of the National Field Study on Gangs and Gang Violence in Dallas, Texas, Revised Draft Report (Washington D.C.: National Institute of Justice, December 1991), at 13.

dwelling for which a search warrant has already been issued. Accordingly, we re-affirm Stevens and conclude that police are not required to adhere to the rule of announcement when executing a search warrant involving felonious drug delivery. The decision of the court of appeals is affirmed.

By the Court.—The decision of the court of appeals is affirmed.

SHIRLEY S. ABRAHAMSON, J. (*concurring*). On the basis of the facts found by the circuit court I conclude, as does the majority, that the entry executed against the defendant was reasonable under the Fourth Amendment. I write separately because I conclude that the majority's reaffirmation of the blanket exception to the knock-and-announce rule first decreed in State v. Stevens, 181 Wis. 2d 410, 511 N.W.2d 591 (1994), cert. denied, 115 S. Ct. 2245 (1995),[1] fails to satisfy the Fourth Amendment's reasonableness requirement delineated by the United States Supreme Court in Wilson v. Arkansas, 115 S. Ct. 1914, 1918 (1995).

Wilson made clear that there is a "presumption in favor of announcement," 115 S. Ct. at 1918, but that the "Fourth Amendment's flexible requirement of reasonableness should not be read to mandate a rigid rule of announcement that ignores countervailing law enforcement interests." 115 S. Ct. at 1918. Law enforcement interests--including the threat of physical harm to law enforcement officers or the existence of reason to believe that evidence would likely be destroyed if advance notice were given--may establish the

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[1] In Stevens, the court examined the facts of the case and concluded that they provided a reasonable basis for the law enforcement officers' unannounced entry. The Stevens court then proceeded to create a blanket rule that law enforcement officers need never comply with the knock-and-announce rule when the police have probable cause through a search warrant for evidence of delivery of drugs or evidence of possession of drugs with intent to deliver. Stevens, 181 Wis. 2d at 435. The holding in Stevens jettisoned longstanding Wisconsin case law interpreting and applying the knock-and-announce rule.

reasonableness of an unannounced entry. Id. at 1919.[2] The burden is on the prosecution to show exigent circumstances excusing the no-knock entry. Id.

By reaffirming Stevens and declaring that neither findings of fact nor a determination of reasonableness are necessary in any case involving a search warrant of the premises of a drug dealer, today's majority opinion ignores the Court's instructions in Wilson. The majority also ignores the Court's "long-established recognition that standards of reasonableness under the Fourth Amendment are not susceptible of Procrustean application" because "each case is to be decided on its own facts and circumstances." Ornelas v. United States, No. 95-5257, WL 276414 1996 at *5 (U.S. May 28, 1996) (quoting Ker v. California, 374 U.S. 23, 33 (1963)). Moreover, and also in contradiction to what Wilson teaches, the majority opinion's reasoning logically leads to the complete abandonment of the knock-and-announce rule in every case involving the execution of a search warrant.

I.

The blanket exception embraced by the majority today cannot be squared with the Wilson decision. Under Wilson, the courts rather than law enforcement officers are charged with determining whether

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[2] The Court held "that although a search or seizure of a dwelling might be constitutionally defective if police officers enter without prior announcement, law enforcement interests may also establish the reasonableness of an unannounced entry." State v. Wilson, 115 S. Ct. 1914, 1919 (1995).

the facts and circumstances of a particular search comply with the Fourth Amendment's command that such a search be reasonable. Wilson, 115 S. Ct. at 1919.

The action taken by the Arkansas high court after the Wilson case was remanded from the United States Supreme Court provides an illustrative contrast with the action taken by the majority today. The Arkansas Supreme Court summarily remanded to the trial court even though the facts in Wilson provided significantly stronger grounds than are present in this case for recognizing an exigent circumstances exception to the knock-and-announce rule. In Wilson, evidence that the accused was a drug dealer included an actual purchase of drugs made by a police informant. Further, the accused had brandished a semi-automatic weapon while threatening to kill an informant if she worked for the police, while the accused's housemate had previously been convicted of arson and firebombing.

The Arkansas Supreme Court's reluctance to draw legal conclusions prior to the trial court's initial determination of whether a no-knock entry at issue was reasonable--despite strong evidence indicating that it was--contrasts sharply with this court's sweeping conclusion that all no-knock entries in cases involving drug dealers are, ipso facto, reasonable. Instead of "mak[ing] any necessary findings of fact and . . . mak[ing] the

determination of reasonableness" which Wilson requires,[3] the majority instead concludes that under current social conditions

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[3] Prior to executing the search warrant against the defendant in this case, the police knew that the defendant had previously been arrested for the possession of 63 packets of cocaine. Furthermore, after the defendant had checked out of another hotel, the police had found clear plastic sandwich bags like the ones used in packaging cocaine. Finally, information obtained from an informant demonstrated that the defendant and his companions had engaged in conduct that matched a drug courier profile, including paying in cash, refusing room service, and making and receiving numerous phone calls from their room.

While the circuit court found that these facts were sufficient to establish probable cause for a search warrant, it found them insufficient to justify a no-knock warrant and therefore rejected the request for a no-knock warrant.

When the police proceeded to execute the warrant, additional circumstances came into play. When the police first sought entry through a ruse, with one officer posing as a maintenance man, the defendant opened the door and then rapidly shut it again. The state and the defendant dispute whether the defendant recognized that the "maintenance man" was a police officer, as well as whether he saw the fully uniformed police officer standing to the right of the "maintenance man." The circuit court characterized the defendant's testimony as self-serving and apparently accepted the officers' statement of what had happened.

Under these circumstances, compliance with the knock-and-announce-rule would constitute a "useless gesture." It has long been recognized "that notice is not required when it is evident from the circumstances that the authority and purpose of the police is already known to those within the premises." 2 Wayne R. LaFave, Search and Seizure § 4.8(f), at 620 (3d ed. 1996) (collecting cases); see also State v. Berry, 174 Wis. 2d 28, 32, 496 N.W.2d 746 (Ct. App. 1993) (when law enforcement officers hold a "reasonable belief that compliance with the rule" of announcement "would be a useless gesture," they need not comply with it).

exigent circumstances are always present in the execution of search warrants involving felonious drug delivery.[4]

Had either the United States Supreme Court in Wilson or the Arkansas Supreme Court upon remand subscribed to a version of the blanket exception announced by the majority today, they need not have remanded for findings of fact and a determination of reasonableness, because there was no question but that the accused in Wilson was dealing drugs, owned a gun, and had threatened to use it. Both courts, however, declined the opportunity to announce blanket rule such as the rule embraced today by the majority.[5]27

Hence it is not surprising that federal and state courts (in addition to the Arkansas Supreme Court) which have had occasion to interpret and apply Wilson have also conducted fact-specific, case-by-case analyses in determining whether no-knock entries made in executing drug-related warrants had met the Fourth Amendment's

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[4] The majority might more appropriately have heeded Justice Scalia's recent reminder that the purpose of the Fourth Amendment requirement of reasonableness "is to preserve that degree of respect for the privacy of persons and the inviolability of their property that existed when the provision was adopted--even if a later, less virtuous age should become accustomed to considering all sorts of intrusion 'reasonable.'" Minnesota v. Dickerson, 508 U.S. 366 (1993) (Scalia, J., concurring).

[5] According to the accused's reply brief in Wilson filed with the United States Supreme Court by the defendant, the state and all of the amici supporting the state's position sought a blanket rule exempting drug searches from the reach of the knock-and-announce rule. Reply Brief for Petitioner, Wilson v. Arkansas, No. 94-5707, 1995 WL 120155, at *11 (U.S. Mar. 17, 1955).

requirement of reasonableness.[6] The majority opinion cites no

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[6] See, e.g., United States v. Murphy, 69 F.3d 237, 242-43 (8th Cir. 1995), cert. denied, 116 S. Ct. 1032 (1996) (no-knock entry to execute search warrant on drug manufacturer's premises reasonable under Wilson; no-knock entries are reasonable when "particular facts regarding the premises to be searched" and "circumstances surrounding the execution of the warrant" establish exigent circumstances; police informed that accused sometimes carried a weapon, that weapons were on premises, that accused had a violent past and that accused was on parole from a second-degree murder conviction); State v. Wilson, 899 F. Supp. 521, 529 (Kan. 1995) (no-knock entry to execute search warrant for crack cocaine upheld; determination of reasonableness required by Wilson requires that "officers had particular reasons to believe that exigent circumstances existed"; "reasonableness inquiry focuses on what particular facts regarding the premises" were known to officers at the time); State v. Moore, 535 N.W.2d 417 (Neb. Ct. App. 1995) (no-knock entry to execute search warrant on drug dealer's premises unreasonable under Wilson; given amount of marijuana to be seized, police believed it would be difficult to destroy it quickly; no evidence that the suspect was armed or dangerous); State v. Vargas, 910 P.2d 950 (N.M. Ct. App. 1995) (no-knock entry to execute arrest warrant against drug traffickers was reasonable; while fact that defendants were suspected of trafficking in drugs and of possessing weapons is not itself enough to excuse compliance with rule of announcement, review of the record revealed additional evidence of defendants' violent tendencies and thereby established reasonableness of a no-knock entry); State v. Ordonez-Villanueva, 908 P.2d 333 (Or. Ct. App. 1995) (no-knock entry to execute search warrant for controlled substances reasonable under Wilson; informant had previously seen controlled substances which might be easily destroyed if police complied with the knock-and-announce rule); State v. Mastracchio, 672 A.2d 438, 443 (R.I. 1996) (question of whether no knock entry to execute search warrant on drug dealer's premises was reasonable remanded to circuit court; although state alleged that no-knock entry was justified to preserve officers' safety and prevent destruction of evidence, circuit court had not made the requisite factual findings and determination of reasonableness); Hargrave v. Commonwealth, 464 S.E.2d 176, 179 (Va. Ct. App. 1995) (no-knock entry to execute search warrant for drugs unreasonable under Wilson; although the object of the search was drugs, police did not have particularized suspicion that evidence could or would be readily destroyed).

See also United States v. Jewell, 60 F.3d 20, 23-24 (1st Cir. 1995) (Wilson requires a determination of whether an affidavit

(continued...)

cases--and I have found none--supporting its interpretation of Wilson.

Finally, the majority cites no United States Supreme Court case eliminating the requirement that officers be able to point to specific, articulable and individualized facts justifying their actions in each case. None of the cases cited by the majority relieves the state in Fourth Amendment cases from the requirement that officers' actions in a particular case be subject to meaningful judicial review to determine whether their actions are "objectively reasonable." See, e.g., Terry v. Ohio, 392 U.S. 1, 21-22 (1968); Michigan v. Summers, 452 U.S. 692, 702-03 (1981); Graham v. Connor, 490 U.S. 386, 396-97 (1989). While I recognize that "[t]he calculus of reasonableness must embody allowances for the fact that police officers are often forced to make split-second judgments," Graham, 490 U.S. at 397, it nevertheless is crucial that those judgments be assessed according to an "objective standard" by a detached and neutral judge. Terry, 392 U.S. at 21-22.

In allowing law enforcement officers rather than the courts to make the ultimate determination of whether a particular search has

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[6](...continued)
presented in support of an application for a no-knock warrant describes circumstances establishing that a no-knock entry would be reasonable); United States v. Conley, 911 F. Supp. 169, 172 (W.D. Pa. 1995) ("based on the teachings in Wilson, the Court believes that the circumstances of each factual situation should be considered by the Court in determining whether the unannounced entry is unreasonable under the Fourth Amendment").

been conducted reasonably, the majority has ignored the United States Supreme Court's admonition that "[t]he scheme of the Fourth Amendment becomes meaningful only when it is assured that at some point the conduct of those charged with enforcing the laws can be subjected to the more detached, neutral scrutiny of a judge who must evaluate the reasonableness of a particular search or seizure in light of the particular circumstances. Terry v. Ohio, 392 U.S. 1, 21 (1968) (emphasis added).

II.

The majority opinion characterizes its blanket exception as "a narrow exception to the general rule" requiring a knock-and-announce entry, Majority op. at 9. The majority's reasoning, however, leads inexorably to the conclusion that the police need never knock and announce and that their decision is not reviewable. As a result, the exception the majority opinion sets forth swallows the rule of announcement.

According to the majority, "[p]olice officers face an unquantifiable risk of violence every time they go into a house to execute a search warrant." Majority op. at 11. I agree with this assessment. Forty-two percent of America's 96.4 million households have some kind of firearms. Twenty-four percent of the households have pistols, 27% have shotguns and 23% have rifles.[7] The federal

[7] Brief for Petitioner, Wilson v. Arkansas, No. 94-5707, 1995 WL 39036, at *42 n.49 (Ark. Jan. 24, 1995) (citing Statistical Abstract of the United States (1992), Tables 409 & 702.

Bureau of Alcohol, Tobacco and Firearms estimates that there are approximately 200 million firearms in the nation, about one per person.[1] As the majority opinion points out, firearms claimed the lives of 92% of the law enforcement officers killed in the line of duty between 1977 and 1986.

According to the reasoning of the majority, then, the large number of firearms in this country and the large percentage of deaths of officers caused by firearms would create a compelling need to eliminate the knock-and-announce rule in all search warrant entries; the probability that one or more of the occupants of any premises has access to a gun would, ipso facto, establish exigent circumstances making a no-knock entry reasonable.

Perhaps aware that its evidence pertaining to firearms proves far too much, the majority attempts to distinguish the dangers associated with executing search warrants related to drugs from the dangers accompanying the execution of any search warrant by claiming that the "risks are only heightened when drugs are involved." Majority op. at 13. However, the crime statistics cited by the majority do not support the contention that "drug related violence is a growing contributor to police mortality." Majority op. at 14 n.8.

As I set forth in my concurrence to Stevens, 181 Wis. 2d at 448 n.18, the total number of officers killed on duty declined from

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[1] See State v. Williams, 168 Wis. 2d 970, 992, 485 N.W.2d 42 (1992) (Abrahamson, J., concurring).

1978 to 1991, as did the number of officers killed in arrest situations involving drug-related matters. Fewer officers (9 officers/4.3 percent) were murdered as a consequence of drug-related violence from 1992-94 than in the periods from 1978-81, 1982-86, or 1987-91.[9] From 1978-94 about twice as many officers were killed in traffic pursuits or stops as were killed in arrest situations involving drug-related matters.[10] During the same years, more officers were killed while answering disturbance calls for family quarrels than were killed in arrest situations involving drug-related matters.[11] The one officer killed in Wisconsin in 1995 was answering a domestic disturbance call.

What I stated in my concurrence to Stevens remains true today: while the death or injury of even one law enforcement officer is one too many, the empirical evidence cited does not support the majority's rationale that executing search warrants in drug cases is more dangerous to officers than other activities. Stevens, 181

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[9] U.S. Dept. of Justice Hindelang Criminal Justice Research Center, 1994 Sourcebook of Criminal Justice Statistics at 357.

[10] The total number of law enforcement officers killed in traffic stops or pursuits was 184, while 94 were killed in disturbance calls for family quarrels and 91 were killed in arrest situations involving drug-related matters. During the period 1992-1994, 10 officers were killed in 1992 and 1993, respectively, and 9 were killed in 1994 while engaged in traffic pursuits or stops; during the same years, 3 officers were killed each year in arrest situations involving drug-related matters. Id.

[11] Id. The number and percentage of officers killed while handling or transporting prisoners in custody doubled between the period 1978-81 and 1987-91. Id.

Wis. 2d at 449 (Abrahamson, J., concurring). If anything, those statistics argue that if law enforcement officers may dispense with the knock-and-announce rule in drug-related cases, they should be able to dispense with it altogether. Conversely, what Wilson teaches is that law enforcement officers may not dispense with the rule of announcement unless they can establish, on a case-by-case basis, that exigent circumstances justify an exception to the rule of announcement and render a no-knock entry reasonable under the Fourth Amendment.

The majority opinion rests on the premise that a knock-and-announce rule increases the likelihood of violence against law enforcement officers. In those cases, a rule of reasonableness would enable the officers to enter without announcement. In many other instances, however, law enforcement officers may expose themselves and other individuals to unnecessary violence when they do not announce their presence.[12]

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[12] Both the brief federal experience with no-knock entries as well as numerous recent newspaper articles indicate the often lethal risks that no-knock entries can pose to both law enforcement officers and the individuals whose homes they enter.

As I explain in my concurrence to Stevens, 181 Wis. 2d at 447-48, a 1970 federal statute authorizing no-knock warrants was repealed only four years later, following numerous highly publicized no-knock raids in which terrified citizens, imagining that intruders were entering their homes, discovered instead that the "intruders" were law enforcement officers entering without notice. The statute, which was described by one senator as "an invitation to official lawlessness," provoked numerous newspaper articles recounting the details of various no-knock raids; more than 100 of them were reproduced in the Congressional Record. In (continued...)

Rather than affirming the sweeping blanket exception to the knock-and-announce rule first advanced in Stevens, I would heed the instructions of the Wilson Court and assess the reasonableness of the no-knock entry in this case on the basis of the facts

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[12](...continued)
Virginia, a woman who had previously been burglarized shot and killed a young officer who, executing a no-knock warrant, entered her bedroom in the middle of the night; in California, a father was shot through the head in his living room as he cradled his infant son. Both the woman and the man were innocent of any wrongdoing. See 119 Cong. Rec. 15,170-76 (1973) (collecting articles); 119 Cong. Rec. 23,242-58 (same); see also Charles Patrick Garcia, The Knock and Announce Rule: A New Approach to the Destruction of Evidence Exception, 93 Colum. L. Rev. 685, 704-05 (1993) (describing unfortunate incidents resulting from no-knock raids undertaken in accordance with the 1970 federal statute).

For more recent accounts of injuries to officers and innocent victims in no-knock drug entries, see, e.g., Alan Abrahamson, Nightmare of Shots in the Dark, L.A. Times, Dec. 12, 1992, at 1 (U.S. drug agents acting on bad tip fail to identify themselves before making forcible entry; occupant, who thinks he is being robbed, shoots and wounds agent and is himself shot in leg, arm, shoulder and lung; no drugs found); James Bovard, No-Knock Entries by Police Take Their Toll on Innocent, Christian Science Monitor, May 24, 1994, at 18 (no-knock drug raids are frequently mistakes; describes, inter alia, no-knock entry in Stockton, CA, in which a 63-year-old homeowner killed a police officer and was then himself killed, although no drugs were found); Hipolito R. Corella, Police Admit SWAT Team Raided Wrong Home, Arizona Daily Star, July 29, 1993, at B1 (police crash through window and detonate stun grenade in townhouse whose inhabitants included three children under five and 75-year-old woman; owner dialed 911 and was told by the dispatcher that "the masked men screaming orders at frightened members of his family were police officers"); Toni Locy, Police Admit Error, Apologize for Fatal Raid, Boston Globe, Mar. 27, 1994 at 1 (in a drug raid, police make no-knock entry in wrong apartment, chasing 75-year-old minister, who suffers a fatal heart attack as a result); Sam Stanton, Cops' Deadly Mistakes in All-Out War on Drugs, San Francisco Examiner, Feb. 7, 1993 (no-knock drug raids often executed against wrong house, "and the tension involved in facing the unknown can lead to trouble"; describes three incidents involving innocent victims of no-knock entries).

presented. The court's decision today ignores Wilson, dispenses with longstanding Fourth Amendment jurisprudence requiring the assessment of reasonableness in each particular case, and may place the very law enforcement officers it purports to protect in greater peril. We should have availed ourselves today of the opportunity to correct our mistake in Stevens. Instead we have compounded it.

For the reasons set forth, I concur in the judgment.

APPENDIX B

FILED

MAR 3 1994

CLERK OF COURT OF APPEALS
OF WISCONSIN

COURT OF APPEALS
DECISION
DATED AND RELEASED

March 3, 1994

A party may file with the Supreme Court a petition to review an adverse decision by the Court of Appeals pursuant to § 808.10, STATS., within 30 days hereof, pursuant to RULE 809.62(1), STATS.

NOTICE

This opinion is subject to further editing. If published, the official version will appear in the bound volume of the Official Reports.

No. 93-0391-CR

STATE OF WISCONSIN **IN COURT OF APPEALS**
DISTRICT IV

STATE OF WISCONSIN,

Plaintiff-Respondent,

v.

STEINEY J. RICHARDS,

Defendant-Appellant.

APPEAL from a judgment and an order of the circuit court for Dane County: ROBERT DE CHAMBEAU, Judge. *Affirmed.*

Before Gartzke, P.J., Dykman and Sundby, JJ.

SUNDBY, J. In this warranted drug search and seizure case, defendant Steiney J. Richards relies on our decision in *State v. Stevens*, 173 Wis.2d 290, 496 N.W.2d 201 (Ct. App. 1992). Because the Wisconsin Supreme Court

reversed our decision, *State v. Stevens*, No. 92-1557-CR (Wis. Feb. 8, 1994), and created a "drug house" exception to the "knock and announce" rule which applies here, we affirm the judgment of conviction and the order denying Richards' motion to suppress evidence of drugs seized in the search of his motel room.

At 3:40 a.m. on December 31, 1991, police officers executed a warrant to search Richards' motel room. Richards does not claim that the police had failed to establish probable cause to obtain a warrant to search his room for drugs. The sole issue he raises is whether, when their attempt to gain entry through a ruse failed, the police were required to comply with the "knock and announce" rule.

In *Stevens*, the Wisconsin Supreme Court adopted a "blanket" "drug house" rule. *Stevens*, slip op. at 15. The court concluded that, "where the police have a warrant to search the property, the residents retain only a very limited interest in privacy. The warrant authorizes the police to enter the residence and search for evidence pursuant to the search warrant." *Id.* at 17. The court further explained that "the societal interest in stopping the drug trade, combined with the police officers' safety interest, outweigh[s] the occupants' limited privacy interests." *Id.* at 18. The *Stevens* court concluded that that privacy interest is protected by the probable cause requirement which must be met before a warrant may be issued to search a residence for evidence of delivery of drugs or evidence of possession with intent to deliver drugs. *See id.* at 9-10. When that probable cause requirement is met, the police may

execute a warrant to search a private residence for drugs without first knocking and announcing their presence and purpose.

Under the "drug house" exception, the officers' search of Richards' motel room was reasonable and did not violate his limited right of privacy.

By the Court.--Judgment and order affirmed.

Not recommended for publication in the official reports.

APPENDIX C

UNITED STATES COURT OF APPEALS
FOR THE SIXTH CIRCUIT
ROOM 538, POTTER STEWART U.S. COURTHOUSE
100 EAST FIFTH STREET
CINCINNATI, OHIO 45202-3988

LEONARD GREEN
CLERK

TELEPHONE
(513) 564-7000

July 17, 1996

RECEIVED
JUL 22 1996
Federal Public Defender's Office
Memphis, Tennessee

Joseph T. Townsend, Esq.
Office of the Federal Public Defender
Suite 410, 100 N. Main Building
100 N. Main
Memphis, TN 38103

Re: No. 95-5507
United States of America v. Rondell Bates

Dear Mr. Townsend:

This will advise you that the court will appreciate your filiing a response to the government's petition for rehearing in the matter noted above. In connection with your response to the first section of the government's argument, the court will find particularly helpful your comment on the recent decision of the Supreme Court of Wisconsin in *State v. Richards*, 549 N.W.2d 218 (1996)

Please file five copies of your response, which should not exceed ten pages in length, with this office not later than Monday, July 29, 1996.

Thanking you for your prompt attention to this request, I am

Very truly yours,

Leonard Green, Clerk

cc: Victor L. Ivy, Esq.
Joseph Douglas Wilson, Esq.

APPENDIX D

COURT OF APPEALS
DECISION
DATED AND RELEASED

June 27, 1996

A party may file with the Supreme Court a petition to review an adverse decision by the Court of Appeals. *See* § 808.10 and RULE 809.62, STATS.

NOTICE

This opinion is subject to further editing. If published, the official version will appear in the bound volume of the Official Reports.

No. 95-1940-CR

STATE OF WISCONSIN

IN COURT OF APPEALS
DISTRICT IV

STATE OF WISCONSIN,

Plaintiff-Respondent,

v.

KENNETH L. LARSON,

Defendant-Appellant.

APPEAL from a judgment and an order of the circuit court for Rock County: EDWIN C. DAHLBERG, Judge. *Affirmed.*

Before Gartzke, P.J., Sundby and Vergeront, JJ.

PER CURIAM. Kenneth L. Larson appeals from a judgment convicting him of possession with intent to deliver a Schedule I controlled substance contrary to § 161.41(1m), STATS. Violation of that statute is a felony because it is punishable by imprisonment in the Wisconsin state prisons. Sections 939.60, 161.41(1m)(a), STATS. He seeks review of an order denying his motion to suppress evidence the police seized in his home on May 27, 1992, on a search warrant. His motion

asserted that the warrant was invalid because it contained a "no-knock" provision but the affidavit supporting its issuance failed to relate circumstances showing reasonable cause to believe that the circumstances justified a no-knock entry.

Larson describes the issues as (1) whether a no-knock warrant, based only on generalized information about the tendencies of "drug dealers," is unconstitutional under a Fourth Amendment analysis; and (2) whether failure to knock-and-announce in the execution of a search warrant is unreasonable when the persons in the home are not suspected of a crime or of presenting a danger to the police, the only suspect was in custody and the only movement detected in the house was "nervous pacing" and not destruction of evidence.

We conclude that the "blanket rule" adopted in ***State v. Stevens***, 181 Wis.2d 410, 511 N.W.2d 591 (1994), authorizing a no-knock warrant under the circumstances present requires that we affirm. Because our Wisconsin Supreme Court reaffirmed ***State v. Stevens***, after re-examining it in light of ***Wilson v. Arkansas***, ___ U.S. ___, 115 S.Ct. 191 (1995), we conclude that the blanket rule established in ***Stevens*** remains the law of this state.

Following an evidentiary hearing on Larson's motion to suppress, the trial court found that the affidavit on which the no-knock search warrant was issued to search Larson's home stated in part, "It has been the experience of your affiant [police detective] that if given time drug dealers will either arm themselves and/or dispose of evidence of a drug crime. Based on this, your affiant asks that the warrant be authorized as a no-knock search warrant." Affiant stated he had received an anonymous tip that Larson was selling fifty to 100 pounds of marijuana and up to one-half pound of cocaine per week. The affiant also stated that when Larson had been arrested for possession of marijuana earlier

that day, he had in his possession $5,620 and a quantity of marijuana. The same day the police had searched trash taken from the terrace at his home, and it contained evidence of drug activity.

Relying on ***State v. Cleveland***, 118 Wis.2d 615, 348 N.W.2d 512 (1984), and ***State v. Williams***, 168 Wis.2d 970, 485 N.W.2d 42 (1992), the trial court ruled that the supporting affidavit did not justify a no-knock provision. The ***Cleveland*** court held that to justify a no-knock entry to prevent the destruction of evidence, the police cannot rely on a blanket rule for a no-knock entry based on the proposition that drugs are easily destroyed but must have particular grounds to provide them with reasonable cause to believe that drugs will be destroyed. ***Cleveland***, 118 Wis.2d at 628, 348 N.W.2d at 519. The ***Cleveland*** court added in dictum that a no-knock entry is not justified by the allegation that drug dealers in general are often armed. ***Id.*** at 631 n.16, 348 N.W.2d at 521. The ***Williams*** court held that the police have probable cause for a no-knock entry only when they have information that a person possesses both firearms and a large quantity of drugs. ***Williams***, 168 Wis.2d at 986, 485 N.W.2d at 48.

The trial court concluded that the no-knock provision was erroneously authorized, but sustained execution of the warrant on other grounds. The court found that when the officers gathered to execute the warrant about 3:00 a.m. on May 27, 1992, they had reason to believe that only Larson's wife and children occupied the premises. The officers decided that if they knocked and the wife answered the door, they would have secured the only adult present and they could then enter the premises to make the search. The court found the officers knocked but they did not announce that they were police with a search warrant.

The trial court found that while officers were knocking at the front door, an officer securing the rear area of the home saw a person silhouetted against a light in the house and pacing back

and forth. When he informed the officers at the front door that there was movement in the house, they used a ram to open the door. That occurred between twenty-five and thirty-five seconds after the knocking. The officer who decided to force the entry did so because of his concern over the movement in the house and the lack of response to the knocking. He wanted the police to control the situation and eliminate the likelihood of danger to them and the occupants and to prevent possible destruction of evidence.

The trial court concluded that the totality of the circumstances surrounding the entry established that the police acted reasonably in their entry of Larson's residence. The court said that the officers had attempted to comply with the rule of announcement, and the decision to force an entry was made after some thirty seconds elapsed after knocking and after they learned of movement in the house not directed to the front door. The court said at that point they had reason to believe that evidence was being destroyed. Concluding it was reasonable for the police not to further follow the rule of announcement, the court denied the motion to suppress.

Shortly after the trial court denied Larson's motion to suppress, the Wisconsin Supreme Court decided ***State v. Stevens***, 181 Wis.2d 410, 511 N.W.2d 591 (1994). The ***Stevens*** court overruled its prior decisions in ***Cleveland*** and ***Williams***, and established a "blanket rule" authorizing no-knock entry provisions for warrants to search homes for evidence of delivery of drugs or evidence of possession with intent to deliver drugs. ***Stevens***, 181 Wis.2d at 424-25, 511 N.W.2d at 595. The court held that because of the easy destruction of drugs and the consequent loss of evidence, the police need not establish that a certain quantity of drugs is in the home to be searched in order to effect a no-knock entry. ***Id.*** at 426-27, 511 N.W.2d at 596. The court also held that due to the inherent violence associated with drug

dealing, the police need not offer particularized evidence of weapons to demonstrate that exigent circumstances exist justifying a no-knock search of a home. *Id.* at 430, 511 N.W.2d at 596.

Larson contends that *Wilson v. Arkansas*, ___ U.S. ___, 115 S.Ct. 1914 (1995), requires us to re-examine the blanket rule established in *Stevens*, 181 Wis.2d at 424-25, 511 N.W.2d at 591. Indeed, he asserts that *Wilson* effectively overrules *Stevens*. However, the Wisconsin Supreme Court undertook in *State v. Richards*, No. 93-0391-CR (June 12, 1996), "to examine the continued validity of *Stevens* in light of ... *Wilson v. Arkansas* ...." *Richards*, slip op. at 2. The *Richards* court concluded "that *Stevens* remains valid," *id.*, reaffirmed *Stevens*, and concluded "that police are not required to adhere to the rule of announcement when executing a search warrant involving felonious drug delivery."[1] *Richards*, slip op. at 22. Larson was convicted of felonious drug delivery. We conclude the issuance of the no-knock search warrant and its execution were proper.

By the Court.—Judgment and order affirmed.

This opinion will not be published. *See* RULE 809.23(1)(b)5, STATS.

[1] The Court defined "felonious drug delivery" to mean felonious delivery of drugs or felonious possession with intent to deliver drugs in violation of Subchapter IV, Wis. Stats., §§ 161.41-43. *Richards*, slip op at 2, n.2. Larson was convicted of violating § 161.41(1m), STATS.